

**Important Information for Tentative Rulings and Hearings:**

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to [Department403@sftc.org](mailto:Department403@sftc.org).
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to [Department404@sftc.org](mailto:Department404@sftc.org).
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551-3756 or send an email to [Department414@sftc.org](mailto:Department414@sftc.org).
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT  
UNIFIED FAMILY COURT  
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. ***The clerk will NOT contact you.*** Remote appearances by video or telephone can be made utilizing the **Zoom** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to [www.zoom.com/join](http://www.zoom.com/join) and follow the instructions below:
  - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
  - Click "Launch Meeting" then "Open zoom.us".
  - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
  - Enable your camera and click "Join".
  - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
  - ***Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.***
  - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

**Department 403**  
**Meeting ID: 161 463 0304**  
**Passcode: 114482**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXpFQ2hTaEFuZnhIZz09>

**Department 404**  
**Meeting ID: 161 305 3325**  
**Passcode: 282709**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQk9kOWckJSNnJwSSStYkR6dz09>

**Department 414**  
**Meeting ID: 161 123 0725**  
**Passcode: 040696**

You can also log into your hearing **directly** using the link below:  
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVTZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

**PROHIBITION ON RECORDING:** **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

SYMONE JEAN LEEANN SMITH,

Petitioner

VS.

CHRISTOPHER A COATS,

Respondent

) Case Number: FPT-26-378842

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER OF CHILD CUSTODY/VISITATION (PARENTING TIME)

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

1) The parties are Petitioner Symone Smith (Mother) and Respondent Christopher Coats (Father).

There is one minor child subject to this proceeding: Mecca Smith (DOB: 09/08/22).

2) On February 11, 2026, Mother filed a Request for Order seeking child custody and visitation (Parenting Time) orders. Mother seeks orders for joint legal and joint physical custody, and requests Father have parenting time from Wednesday after daycare (or 4:00 p.m.) until Saturday at 4:00 p.m.

3) The Request for Order to Change Visitation was originally set for “readiness” on March 16, 2026, which was then continued to April 20, 2026. At the April 20, 2026 hearing, the Court referred the parties to Family Court Services (FCS) Mediation on June 2, 2026 and set a return hearing on June 11, 2026.

4) On June 9, 2026, the parties filed a stipulation and order regarding custody and visitation.

5) Father did not file a Responsive Declaration to Mother’s Request for Order.

1 **B. Findings and Order**

- 2 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child  
3 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in  
4 violation to civil or criminal penalties, or both. The country of habitual residence of the minor  
5 child is the United States.
- 6 2) The Court confirms the parties' stipulation and order regarding custody and visitation filed on  
7 June 9, 2026.
- 8 3) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

ANTHONY METCALF SCHWARTZ,

Petitioner

VS.

GRACE MARIA SCHWARTZ,

Respondent

) Case Number: FDI-18-790180

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY'S FEES AND COSTS, DECLARE COM. PROPERTY;  
ENFORCE ORDERED SPOUSAL SUPPORT ORDERS, (MORE)

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Anthony Metcalf Schwartz and Respondent Grace Maria Schwartz.
- 2) On 2/10/26, Respondent filed a Request for Order seeking \$7,500 in attorney's fees, enforcement of spousal support and "lump-sum payments" ordered by the Court, sanctions, and "a finding of perjury". The Court notes section 8(a) – 8(c) are completed on form FL-300 (Request for Order); however, Respondent did not check the section 8 box, "Time for Service/ Time Until Hearing" or the "Temporary Emergency Orders" box in the caption of the form. Respondent concurrently filed a declaration entitled Request for a Long-Cause Hearing, a Memorandum of Points and Authorities, and a declaration entitled Declaration in Support of An Order Shortening Time. The matter was set for hearing on the Court's regular calendar on 4/30/26.
- 3) There is no Proof of Service on file indicating Respondent's 2/10/26 Request for Order and supportive pleadings were served on Petitioner.
- 4) Petitioner did not file a Responsive Declaration.

1 5) On 4/16/26, counsel Petitioner filed a Substitution of Attorney indicating Petitioner is now self-  
2 representing.

3 6) At the prior 4/30/26 hearing, the Court continued the matter to 6/16/26 for lack of service.

4 7) There is still no Proof of Service on file indicating Respondent's 2/10/26 Request for Order and  
5 supportive pleadings were served on Petitioner.

6 **B. Findings and Order**

7 1) Given that Respondent was previously provided additional time to effectuate proper service and  
8 failed to do so, the Court finds good cause to DENY Respondent's Request for Order filed  
9 2/10/26 without prejudice (i.e., Respondent may refile).

10 2) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

MASOUMEH ZARE FAKHRAN,

Petitioner

VS.

JOHN REID GROHL,

Respondent

) Case Number: FDI-23-798656

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHILD CUSTODY, VISITATION, FULL CHILD  
CUSTODY EVALUATION

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Masoumeh Zare Fakhrianh (Mother) and Respondent John Grohl (Father). They share one minor child: Zoe Zare Fakhrian Grohl (DOB: 10/16/22).
- 2) On March 10, 2026, Father filed a Request for Order (RFO) seeking a modification of the existing custody and visitation (i.e., parenting time) orders. Father requests:
  - a. A full child custody evaluation, to include a psychological evaluation of both parties;
  - b. Sole legal and sole physical custody pending the evaluation;
  - c. Modification of the existing parenting time orders such that Mother has the minor child on the 1st, 2nd, 4th and 5th Saturdays from 10:00 a.m. – 6:00 p.m., and Wednesdays from 12:30 p.m. – 6:00 p.m., in Sonoma County, with exchanges to occur at the Windsor Police Department.
  - d. A full evidentiary hearing to address the child custody evaluation and for determination of appropriate child custody and visitation orders.

- 3) On April 15, 2026, Mother filed a Responsive Declaration to Father's RFO wherein she asks this Court to deny all relief sought by Father. Mother states that all allegations included in Father's RFO were previously litigated. Mother concludes that Father has not made a showing of change in circumstance necessary to modify child custody orders.
- 4) On April 15, 2026, Mother filed "Evidentiary Objections to Respondent/Father's Declaration in Support of His Motion filed March 10, 2026," which has been read and considered by the Court.
- 5) On April 27, 2026, the matter was heard on the Court's Readiness calendar. The Court referred the parties to Family Court Services (FCS) Mediation on June 5, 2026 and set a return hearing for June 16, 2026.
- 6) On June 9, 2026, Mother filed a Supplemental Declaration of Petitioner Masoumeh Zare Fakhrian, which has been read and considered by the Court.

#### **B. Findings and Order**

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.
- 2) The Court GRANTS Father's request for a full Evidence Code section 730 child custody evaluation, which includes a psychological evaluation of both parties.
- 3) Father shall provide Mother with the names of three proposed 730 evaluators no later than 5:00 p.m., on June 23, 2026. For documentation purposes, Father shall email Mother his list of three potential providers.
- 4) Mother shall then have up and until 5:00 p.m., on June 30, 2026 to select one person from the list sent by Father. Mother shall email Father her selection, for purposes of documentation and compliance with this Court's order.
- 5) Father shall pay all costs associated with the Evidence Code section 730 child custody evaluation, which shall be subject to reallocation. The issue of reallocation is reserved by the Court.
- 6) The Court reserves jurisdiction over any and all other requests contained within Father's RFO through the next hearing.



1 7) A return hearing is set on **September 17, 2026, at 9:00 a.m., in Department 403** to address the  
2 status of the 730 evaluation and for consideration of any and all other issues raised in Father's  
3 RFO filed on March 10, 2026 (assuming the issues are ripe for consideration at that time).

4 8) All prior orders, not in conflict with the orders entered herein, shall remain in full force and  
5 effect.

6 9) Counsel for Father shall prepare the Findings and Order After Hearing.

7 10) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within  
8 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other  
9 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule  
10 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the  
11 proposed order after hearing directly to the court. Failure to submit the order after hearing within  
12 10 days may allow the other party to prepare a proposed order and submit it to the court in  
13 accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

LISA ABDILOVA ANDERSEN,

Petitioner

VS.

ALEXANDER KARL ANDRESEN,

Respondent

) Case Number: FDI-24-800304

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

HEARING RE: ATTORNEY FEES, LIFE INSURANCE, MEDICAL SUPPORT ORDER, TRUE-UP,  
AND AUTOMATIC SHARING OF RECOMMENDED MEDICAL EXPENSES

**TENTATIVE RULING**

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.**

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

JOSE ALBERTO MARTINEZ REYNOSA,

Petitioner

VS.

JOSEFINA TOLAMA COBA,

Respondent

) Case Number: FDI-24-800540

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER SPOUSAL OR PARTNER SUPPORT

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Jose Alberto Martinez Reynosa (Husband) and Respondent Josefina Tolama Coba (Wife). There are no minor children subject to this proceeding.
- 2) On 11/13/24, Husband filed a Petition for Dissolution indicating the date of the marriage is 04/23/15 and the date of separation is 05/01/21 for a marriage of 5 years and 1 month.
- 3) On 12/23/24, Wife filed a Response and Request for Dissolution indicating the date of the marriage is 04/23/15 and date of separation is 12/04/23 for a marriage of 8 years and 7 months.
- 4) On 04/30/26, Wife filed a Request for Order seeking guideline temporary spousal support of \$2,442 a month. Wife indicates that Husband's makes \$7,392 in gross monthly income, pays \$4,588 in monthly expenses, and has \$2,600 in debts. Wife asserts these figures based on Husband's 03/22/25 Income and Expense Declaration. Wife states she is employed on an "on-call basis," so her work is not guaranteed by her employer, and on or about 12/18/25 she stopped accepting shifts due to ongoing health issues from a work-related injury sustained in 2021. Wife asserts Husband was the primary provider for the household during marriage and Wife was left

1 with substantial debt after separation. Wife attaches a proposed XSpouse calculation to her  
2 Request for Order.

- 3 5) On 04/30/26, Wife filed an Income and Expense Declaration indicating that she makes \$0 in  
4 gross monthly, has \$0 in real and personal property assets, pays \$1,633.39 in monthly debt  
5 payments, pays \$4,187.39 in total monthly expense, and has \$2,554 of her monthly expenses paid  
6 by others.
- 7 6) On 04/30/26, Wife filed a Statement of Support Calculations using Husband's income listed in  
8 his 03/22/25 Income and Expense Declaration to determine guideline temporary monthly spousal  
9 support of \$2,442.
- 10 7) On 05/07/26, Wife filed a Proof of Service indicating that Husband was served on 05/06/26 by  
11 mail, which is timely service.
- 12 8) On 06/05/26, Husband filed a Responsive Declaration in opposition to Wife's Request for Order.  
13 Husband asserts Wife has been self-supporting since separation. Husband indicates that Wife is  
14 voluntarily not working and requests that the Court impute earnings to Wife as she provided no  
15 documentary evidence of her disability. Husband asserts that Wife's earning capacity is at  
16 minimum \$5,000 a month based on the hourly compensation of Wife's current job multiplied by  
17 forty hours per week (\$29 x 40). Husband states that he sustained an injury while at work and has  
18 been on disability since 10/2/25. Husband attaches a healthcare form showing he is on temporary  
19 disability until 7/21/26. Husband requests that the Court issue a Gavron warning advising Wife of  
20 her obligation to make a good-faith effort to become self-supporting.
- 21 9) On 06/05/26, Husband filed an Income and Expense Declaration indicating that he receives  
22 \$5,609 in monthly private disability insurance, has \$1,500 in cash assets, has \$3,000 in personal  
23 assets, and pays \$8,060 in total monthly expenses.
- 24 10) On 06/05/26, Husband filed a Statement of Support Calculations indicating that Wife's gross  
25 monthly income is \$5,020.

## 26 **B. Findings and Order**

- 27 1) "Awards of temporary spousal support rest within the broad discretion of the trial court and may  
28 be ordered in any amount subject only to the moving party's needs and the other party's ability to  
29 pay." See *Marriage of Murray* (2002) 101 Cal.App.4<sup>th</sup> 581.

- 1       2) “A supported spouse’s need is an essential element in determining entitlement to support  
2       independent of the other spouse’s ability to pay.” See *In re Marriage of Hoffmeister* (1984) 161  
3       Cal.App.3d 1163, 1175.
- 4       3) The burden of proof as to both elements (need and ability to pay) rests on the party seeking  
5       support.
- 6       4) Here, the Court finds Wife failed to sufficiently establish Husband’s ability to pay given that: (a)  
7       Husband provided documentary evidence that he is on temporary disability until 7/21/26 from a  
8       work-related injury sustained on 10/2/25; and (b) his income and Expense Declaration filed  
9       6/5/26 shows his expenses exceed his monthly disability payments.
- 10      5) Based on the foregoing, Wife’s requests for temporary monthly spousal support is DENIED.
- 11      6) As the Court denied Wife’s request for temporary monthly spousal support, the Court finds  
12      Husband’s requests that Wife be imputed income and issued a Gavron Warning are MOOT.
- 13      7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

TRACEY CLARKE BILTER,

Petitioner

VS.

SCOTT DOUGLAS BILTER,

Respondent

) Case Number: FDI-24-800718

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS, AND TRIAL CONTINUANCE  
BASED ON LOSS OF COUNSEL DUE TO NONPAYMENT

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Tracey Clarke Bilter and Scott Douglas Bilter.
- 2) On 4/27/26, Petitioner filed a Request for Order seeking \$37,959 in Family Code section 2030 attorney's fees and costs and a continuance of trial due to loss of legal representation. Petitioner's position is that Respondent is required to pay 60% of per legal fees per the terms of the Stipulation and Order filed 1/14/25. Petitioner asserts that due to Respondent's failure to pay, she can no longer afford legal representation. Petitioner states that the case is not ready for trial because the parties are not of equal footing to proceed.
- 3) On 4/27/26, Petitioner filed an Income and Expense Declaration.
- 4) On 6/1/26, the parties attended a Status Conference, and the Court set a Mandatory Settlement Conference on 10/9/26.

1 5) On 6/3/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for  
2 Order. Respondent requests the Court deny Petitioner's request for \$37,959 in attorney's fees and  
3 costs and instead order a \$10,000 advancement of funds that is subject to reallocation.

4 6) On 6/3/26, Respondent filed an Income and Expense Declaration.

5 7) On 6/3/26, Respondent additional financial documents.

6 8) On 6/5/26, Petitioner filed a Reply Declaration reiterating her requests

7 **B. Findings and Order**

8 1) The Court confirms that the case is set for Mandatory Settlement Conference on 10/9/26.

9 2) Petitioner's request for Family Code section 2030 attorney's fees is GRANTED, albeit in the  
10 amount of 15,000 subject to reallocation.

11 3) The Court finds an award of attorney's fees and costs is appropriate here because there is a  
12 demonstrated disparity between the parties in access to funds to retain or maintain counsel and in  
13 the ability to pay for legal representation.

14 4) The Court further finds Respondent has or is reasonably likely to have the ability to pay for legal  
15 representation for both parties.

16 5) Finally, \$15,000 in attorney's fees and costs are reasonable and necessary.

17 6) Respondent shall pay this balance in full by 6/30/26.

18 7) The Court will prepare the Findings and Order After Hearing.  
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

STEPHANIE TRAMICHECK,

Petitioner

VS.

ALEXANDER CASSASSOVICI,

Respondent

) Case Number: FDI-25-800898

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: PROPERTY CONTROL, SALE OF COMMUNITY REAL PROPERTY;  
HELOC; WATTS

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Stephanie Tramicheck and Respondent Alexander Cassassovici.
- 2) On 4/22/26, Respondent filed a Request for Order asking the Court to compel the sale of the community real property located at 421 27th Street, San Francisco, CA 94131 (marital residence) and issue related orders, including Petitioner to vacate the home within 30 days and selection of a listing agent. Respondent requests the Court authorize a home equity line of credit (HELOC) for costs incurred preparing the marital residence for sale and as an advancement of community property funds to both parties and designate a default escrow vendor. Respondent seeks Watts credits for Petitioner's use of the marital residence.
- 3) On 6/3/26, Petitioner filed a Responsive Declaration. Petitioner agrees to the sale of the marital residence and proposes a "Phased Sale Plan," which she requests the Court adopt. Petitioner requests the Court order all proceeds from the sale of the marital residence be maintained in a dual signature authorized account. Petitioner asks the Court to deny Respondent's request for



1 Watts credits or offset any Watts credits against Epstein credits when final judgment is entered.  
2 Petitioner requests Respondent be ordered to contribute to the carrying costs on the marital  
3 residence if she is ordered to vacate.

4 4) On 6/9/26, Respondent filed a Reply Declaration asserting that the parties agree on many issues  
5 including the sale of the marital residence, listening agent, pre-sale repairs, a \$50,000 advance at  
6 closing to each party, net sale proceeds distributed evenly, and Watts and Epstein issues reserved  
7 for final judgment. Respondent states the only remaining issues are:

- 8 a. Petitioner's short-term rental of the marital residence;
- 9 b. The date certain on which Petitioner must vacate the marital residence so that it can be  
10 listed for sale;
- 11 c. Reasonable access to the marital residence for the contractors and professionals necessary  
12 for sale preparation, which should not exceed \$100,000;
- 13 d. Reasonable access to the marital residence for Respondent to retrieve personal  
14 belongings;
- 15 e. Household furnishings to be reasonably divided before the marital residence is staged;
- 16 f. Remaining net sale proceeds to be deposited either in the Lerner Poole & Stewart firm  
17 trust account or with a holding escrow company, pending the parties' written agreement  
18 or further court order, unless Petitioner timely identifies a qualifying dual control bank.

19 **B. Findings and Order**

20 1) The Court adopts the parties' agreements as the order of the Court as follows:

- 21 a. The community real property located at 421 27th Street, San Francisco, CA 94131  
22 (marital residence) will be listed for sale and Suhl Chin of Corcoran Icon Properties will  
23 be the listing agent;
- 24 b. The pre-sale repairs will be performed, and the open permits closed before listing the  
25 marital residence for sale;
- 26 c. Sale-preparation costs up to \$50,000 will be funded through the listing agent's affiliated  
27 financing program (Notable / Icon Concierge) and repaid at close of escrow;
- 28 d. Each party will receive a \$50,000 advance from the proceeds at closing;
- 29 e. The balance of the net sale proceeds will be divided equally after all costs are paid; and

- 1           f. Watts and Epstein issues are reserved for final judgment.
- 2       2) Petitioner shall vacate the marital residence no later than 9/1/26, so that the marital residence can  
3       be listed for sale no later than 9/1/26.
- 4       3) Until she has vacated the marital residence, Petitioner shall provide reasonable access for all  
5       contractors and professionals needed to prepare it for sale.
- 6       4) Once she has vacated the marital residence, Respondent shall be responsible for 50% of all  
7       carrying costs of the marital residence.
- 8       5) The selected listing agent, or another mutually agreed neutral third party, shall be authorized to  
9       determine and direct the sale preparation — including inspections, permit closures, repairs,  
10      enhancements, staging, vendor selection, and the associated budget, which shall not exceed  
11      \$100,000 — on written notice to the parties, with each party allowed 24 hours to review such  
12      notice, unless both parties object.
- 13      6) Household furnishings shall be reasonably divided when the selected listing agent, or another  
14      mutually agreed neutral third party, recommends.
- 15      7) No rental occupancy of the marital residence or any portion of it shall continue beyond 7/30/26,  
16      including no new listings, bookings, or extensions.
- 17      8) Respondent shall be granted reasonable access to the marital residence on a mutually agreed-upon  
18      date to retrieve personal belongings and documents (clothing, toiletries, prescribed medication,  
19      medical records, medical insurance card, driver's license, or state identification cards and any  
20      other personal items).
- 21      9) After close of escrow, the net sale proceeds (i.e., the sale proceeds remaining after payment of the  
22      mortgage, liens (including property taxes), closing costs, realtor fees, and the agreed \$50,000  
23      advances) shall be deposited in the client trust account of Lerner Poole & Stewart or with a  
24      holding escrow company, unless Petitioner identifies a bank with documented dual-signature  
25      controls by 6/30/26. These funds shall be released only on the parties' written agreement or  
26      further court order.
- 27      10) The Court will prepare the Findings and Order After Hearing.
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

STEWART MCKENZIE,

Petitioner

VS.

LAYNE RINGGENBERG,

Respondent

) Case Number: FDI-25-801724

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: ATTORNEY FEES AND COSTS, ENFORCE STIP AND ORDER FILED  
10/28/2025 AND SANCTIONS

**TENTATIVE RULING**

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.**

**A. Procedural History**

- 1) The parties are Petitioner Stewart Mckenzie and Respondent Layne Ringgenberg.
- 2) On 7/23/25, Petitioner filed a Petition for Dissolution of Marriage and Domestic Partnership. Petitioner lists the date of marriage as 10/18/13 and date of separation as 7/18/25 for a marriage of 11 years and 9 months. Petitioner lists the registration date of domestic partnership as 10/18/03 and date of separation as 7/18/25 for a domestic partnership of 21 years and 9 months.
- 3) On 9/1/25, Respondent filed a Response and Request for Dissolution of Marriage and Domestic Partnership. Respondent lists the date of marriage as 10/18/13 and date of separation as 7/18/25 for a marriage of 11 years and 9 months. Petitioner lists the registration date of domestic partnership as 10/18/03 and date of separation as 7/18/25 for a domestic partnership of 21 years and 9 months.

- 1 4) On 10/28/25, the parties filed a Stipulation and Order, which includes, in relevant part,  
2 agreements for: (a) Respondent to retain sole occupancy of the real property located at 122 Joost  
3 Avenue, San Francisco, CA 94131 until 3/15/26 (marital home); (b) the parties to select a real  
4 estate agent by 12/31/25; (c) Petitioner to continue paying joint obligations for the parties'  
5 mortgage, homeowner's insurance, auto insurance, water and sewer, motorhome insurance, and  
6 motorhome storage fee.
- 7 5) On 4/24/26, Petitioner filed a Request for Order seeking enforcement of the terms of parties'  
8 10/28/25 Stipulation and Order and \$5,000 in Family Code section 271 sanctions. Petitioner  
9 states he can no longer pay the mortgage and carrying costs on the marital home as he is  
10 unemployed and requests Respondent be ordered to vacate the marital home within 15 days so it  
11 can be listed for sale forthwith to avoid foreclosure.
- 12 6) On 6/3/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for  
13 Order. Respondent states serious medical issues and hospital stays have impacted his ability to  
14 move out of the marital home. Respondent asserts he is not refusing to move out of the marital  
15 home; however, he is also struggling financially and cannot agree to move out of the marital  
16 home until the fall when he anticipates his health will stabilize. Respondent seeks Family Code  
17 Section 2030 attorney's fees in the amount of \$3,000.

18 **B. Findings and Order**

- 19 1) **The parties are ordered to appear.**  
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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

JASWINDER SINGH KHALSA,

Petitioner

VS.

SAT SANGAT KAUR KHALSA,

Respondent

) Case Number: FDV-24-818060

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FAM. CODE 6344 ATTORNEY'S FEES AND COSTS FOR PREVAILING  
PARTY IN DV ACTION

**TENTATIVE RULING**

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the  
Court makes the following findings and orders:

**A. Procedural History**

- 1) The parties are Petitioner Jaswinder Singh Khalsa (Father) and Respondent Sat Sangat Kaur Khalsa (Mother). They share 1 minor child: Quanyin Sofia Khalsa (DOB: 4/2/13).
- 2) On 12/3/24, Father filed a Request for Domestic Violence Restraining Order (DVRO). The Court held a long-cause hearing on Father's request for DVRO on 9/9/25, 9/10/25, 11/10/25, and 12/29/25.
- 3) On 12/29/25, the Court granted Father's DVRO request and issued a three-year Restraining Order After Hearing (ROAH) against Mother, which included protection for the minor child. See ROAH file dated 1/14/26.
- 4) On 4/30/26, Father filed a Request for Order seeking \$142,254.70 in attorney's fees and costs pursuant to Family Code section 6344 asserting that he should not have to pay to be protected from his abusive partner. It is Father's position that Mother has the ability to pay. Father states his parents helped pay his legal fees and he intends to repay them. Father attaches as Exhibit 1

1 Mother's Income and Expense Declaration (dated 2/3/26), indicating that her total monthly  
2 expenses equal an estimated \$9,231, which includes discretionary spending. Father attaches as  
3 Exhibit 2 Mother's home value posted on Zillow for \$812,300.

4 5) On 4/30/26, Father filed a Memorandum of Points and Authorities in support of his Request for  
5 Order.

6 6) On 4/30/26, attorney Courtney Glickman filed a declaration in support of Father's request for  
7 attorney's fees and costs.

8 7) On 6/2/26, Mother filed a Responsive Declaration in opposition to Father Request for Order.

9 Mother asserts she cannot afford to pay Father's legal fees, Father's legal fees are excessive and  
10 unreasonable, and she tried to settle with Father on multiple occasions to avoid litigation. Mother  
11 states she has significant state (\$134,000) and federal (\$495,210) tax liabilities on her home, no  
12 income as of 3/30/26, and relies on loans from her own mother for living expenses (who she owes  
13 \$80,000).

14 8) On 6/2/26, Mother filed an updated Income and Expense Declaration in which she lists her total  
15 monthly expenses as \$6,145.

16 9) On 6/2/26, attorney, Kathleen L. Morgan, filed a declaration in opposition to Father's Request for  
17 Order, asserting that Father unnecessarily retained three attorneys to represent him. Mother's  
18 attorney states that Mother incurred \$20,409 in legal fees for 10 hours at \$250 an hour and has an  
19 outstanding bill of \$10,221.10.

20 10) On 6/3/26, Mother filed a Memorandum of Points and Authorities in support of her Responsive  
21 Declaration.

22 11) On 6/9/26, Father and two attorneys, Jonathan S. Leo and Courtney Glickman, each filed Reply  
23 Declarations in support of Father's Request for Order, asserting that the case was more complex  
24 than typical domestic violence proceedings because the issues presented involved the minor  
25 child's safety and emotional well-being. Father states he initially tried to save costs by hiring his  
26 own father, Jonathon S. Leo, to represent him; however, Mr. Leo lacked family law experience,  
27 and ultimately Father hired two attorneys from Moradi Neuffer LLP. Father disputes the financial  
28 information Mother presented.  
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1 12) On 6/9/26, Father filed a Memorandum of Points and Authorities in support of his Reply  
2 Declaration

3 **B. Findings and Order**

4 1) Father's request for attorney's fees and costs pursuant to Family Code section 6344 is DENIED.

5 2) The Court finds Father was the prevailing party in the DVRO matter at issue.

6 3) However, the Court cannot find that Mother has the ability to pay given her significant state  
7 (\$134,000) and federal (\$495,210) tax liabilities, lack of income since 3/30/26, and reliance on  
8 loans from her own mother for living expenses (who she asserts she owes \$80,000). Mother's  
9 ability to pay is a required finding pursuant to 6344(c).

10 4) Based on the foregoing, the Court need not assess whether Father's attorney's fees and costs were  
11 reasonable and necessary.

12 5) The Court will prepare the Findings and Order After Hearing.

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SUPERIOR COURT OF CALIFORNIA  
COUNTY OF SAN FRANCISCO  
UNIFIED FAMILY COURT

TEODULA MARTINEZ,

Petitioner

VS.

JESUS HERNANDEZ,

Respondent

) Case Number: FDV-25-818192

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

PER STIPULATION ON JAN-28-26

**TENTATIVE RULING**

**The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.**

**A. Procedural History**

- 1) The parties are Petitioner Teodula Martinez (Mother) and Respondent Jesus Hernandez (Father). They share two minor children: Jade Hernandez Martinez (DOB: 02/17/11) and Dylan Hernandez Martinez (DOB: 05/15/14).
- 2) On October 31, 2025, Father filed a Request for Order seeking a modification of the existing child custody and visitation orders. Father requests sole legal and sole physical custody and an order that Father have the minor children in his care during the week and that Mother have them on the weekends.
- 3) On December 1, 2025, the Court referred the parties to Family Court Services (FCS) Mediation on January 28, 2026 and set the matter for return hearing on February 19, 2026.
- 4) On January 28, 2026, the parties entered into a stipulation and order related to child custody and visitation and continued the February 19, 2026 hearing to June 4, 2026. In particular, the parties stipulated to the following orders:



- a. Joint legal and joint physical custody.
- b. Commencing Friday, January 30, 2026, the minor children shall live with Father during the Spring Semester 2025-2026 Academic school year.
- c. Father shall enroll the minor children in school in San Francisco.
- d. Father shall enroll the minor children in medical services and schedule all necessary appointments for the minor children.
- e. Father shall schedule all school evaluations and IEP's.
- f. Father shall ensure the minor children attend school daily.
- g. Mother shall have Spring Break.
- h. If minor children's attendance and academics do not improve, then after the Spring Semester, the minor children shall return to Mother, and all previous orders shall be in full force and effect.
- i. Per mutual agreement, the parties may adjust the schedule to meet the needs of the minor children.

5) The parties attended further FCS mediation on June 1, 2026. They did not reach any further agreements. The parties request the following:

- a. Mother:
  - i. The parties follow the current schedule for one more semester to evaluate how the minor children are doing in school.
  - ii. The month of July for vacation and Father to provide all the transportation.
- b. Father:
  - i. To share transportation for the month of July; Father can drop off the minor children to Mother and she can deliver them back to Father after her vacation time.
  - ii. The minor children remain in San Francisco with Father for the remainder of their academic school years.

## **B. Findings and Order**

- 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in

violation to civil or criminal penalties, or both. The country of habitual residence of the minor child(ren) is the United States.

2) **The parties are ordered to appear.**